

Atlas Underground Construction; Tryzmac, Inc. should not be stricken in the absence of an attorney to maintain actions on behalf of these entities.

The Mazzola Law Office sought to withdraw as counsel for Casey Anderson but did not specify it was for Casey Anderson individually and as co-trustee of the Anderson Family Trust. A substitution of counsel has been filed for Valjean Anderson as an individual but does not specify it is as co-trustee for the Anderson Family Trust. The court appreciates the response by Seren Legal to the Order to Show Cause and understands that Seren Legal is not retained to represent the trust and intends to represent Valjean Anderson as an individual and as co-trustee solely in representative capacity. An updated substitution should be filed forthwith.

Probate Code section 15620 provides that unless otherwise provided in the trust instrument, a power vested in two or more trustees may only be exercised by their unanimous action.

The court understands that Casey and Valjean Anderson have initiated dissolution proceedings and have adverse interests. The automatic temporary restraining orders (“ATROS”) associated with a marital dissolution prohibit either party from taking action to dissolve the trust absent stipulation and/or court order.

Per Probate Code section 15620, the trust itself cannot be represented by multiple attorneys with interests that are adverse. But, the court understands that the trust is not named as a party to a contract or as a defendant to a tort, but as an alter ego in which assets are alleged to have been converted to avoid judgment and collection. It appears that the individual co-trustees have different and potentially adverse interests in protecting the assets of the trust from judgment and that continued separate defense in a representative capacity is appropriate under these circumstances. However, a pro per still cannot appear on behalf of a co-trustee for a trust with more than one beneficiary.

As no substitution of counsel has been filed, the court strikes the cross-complaint of Seton Pacific Construction. Additionally, the court strikes the Answer to the Second Amended Complaint filed by Seton Pacific Construction sued as Seton Pacific Construction, Inc.; 625 East H. St Development LLC; Seton, Inc.; Atlas Underground Construction; and Trzymac, Inc. The answer to the Second Amended Complaint was the only responsive pleading filed by these named defendants. As to all parties in which the answer to the Second Amended Complaint has been stricken, a default may be taken forthwith.

AAKRITI SUBEDI v. FIDELITY TECHNOLOGY GROUP, LLC
Case No. CU25-10331

Defendant’s Motion to Quash Service of Summons

TENTATIVE RULING

Defendant FIDELITY TECHNOLOGY GROUP, LLC moves to quash Plaintiff AAKRITI SUBEDI's service of summons on it on her complaint for violations of the Fair Employment and Housing Act (the "FEHA") on the basis that this court lacks personal jurisdiction. Defendant is a Delaware corporation with its principal place of business in Massachusetts. Plaintiff alleges that Defendant hired her to work at one of its offices in Texas as a software engineer. Defendant was aware Plaintiff was a California resident at the time it hired her. Defendant afforded Plaintiff remote work capabilities first due to the COVID-19 pandemic and then pursuant to Plaintiff's request for accommodation to care for her husband's medical needs. Defendant allegedly terminated Plaintiff's employment due to her request for extended remote work status as an accommodation for her own disabilities.

Request for Judicial Notice. The court takes judicial notice of a filing with the Massachusetts Corporations Division identifying Defendant as a Delaware corporation with its principal office in Massachusetts as a fact not reasonably subject to dispute and amenable to determination by resort to sources of reasonably undisputable accuracy per Evidence Code section 452, subdivision (h).

Specific Jurisdiction. California courts may exercise personal jurisdiction "on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) The exercise of jurisdiction over a nonresident defendant comports with those constitutions if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate traditional notions of fair play and substantial justice. (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268 (*Pavlovich*)). An essential criterion of determining minimal contacts is whether the quality and nature of the defendant's activity is such that it is reasonable and fair to require him to conduct his defense in California. (*Ibid.*) There are two recognized forms of personal jurisdiction: general and specific. (*Ibid.*) In the case before the court Plaintiff does not assert that the court possesses general jurisdiction over Defendant, so only specific jurisdiction is evaluated.

Specific jurisdiction exists if all of the following are true: (1) the defendant has purposefully availed himself of the benefits of the forum, (2) the controversy is related to or arises out of the defendant's contacts with the forum, (3) and assertion of jurisdiction would comport with fair play and substantial justice. (*Pavlovich, supra*, 29 Cal.4th at p. 269.) The plaintiff has the burden of establishing the first two points; should he do so, the defendant must then carry the burden of proving that jurisdiction would not be just. (*Id.* at p. 273.)

Purposeful Availment. The purposeful availment inquiry focuses on the defendant's intentionality. (*Pavlovich, supra*, 29 Cal.4th at p. 269.) It is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on his contacts with the forum. (*Ibid.*) Accordingly the inquiry is not

satisfied if the defendant's contacts with the forum are fortuitous, random, or attenuated, or if the contacts came of unilateral activity of another entity. (*Ibid.*)

Plaintiff does not establish Defendant's purposeful availment of the California forum. The evidence presented shows only that Defendant hired Plaintiff to work in Texas with knowledge that at the time she lived in California. (Declaration of Aakriti Subedi in Opposition to Motion to Quash at ¶¶ 5, 6; Exhibit B.) Plaintiff performed her work remotely but the work was not targeted to California clients, consumers or use by Fidelity's small California office. Accommodation of Plaintiff's request to work remotely from California was not a purposeful effort to cause Plaintiff to perform work in California. That the offer letter contained a disclaimer that information contained within was in part provided due to the requirements of the California Labor Code does not raise the offer letter to the level of purposeful and voluntary direction such that Defendant should have expected its actions to subject it to California jurisdiction.

Connection Between Contacts and Claims. Besides the defendant's purposeful availment of the forum, a plaintiff must show an affiliation between the forum *and the underlying controversy*, meaning principally an activity or occurrence that takes place in the forum and is therefore subject to the forum's regulation. (*Goodyear Dunlop Tires Operations, S.A. v. Brown* (2011) 564 U.S. 915, 919.) The plaintiff cannot be the only link between the defendant and the forum. (*Walden v. Fiore* (2014) 571 U.S. 277, 285-286.) Because a plaintiff's claims must "arise out of *or relate to*" the defendant's contacts with a forum, the connection between contacts and claims need not be causal. (*Ford Motor Co. v. Montana Eighth Judicial District Court* (2021) 141 S.Ct. 1017, 1026 [emphasis in original].) There must simply be a relationship between the defendant, the forum, and the litigation. (*Id.* at p. 1028.)

The nature of Defendant's contacts with California do not bear a substantial relationship to Plaintiff's claims. Plaintiff's complaint avers that Defendant failed to accommodate her needs by affording her remote work for her job in Texas. (Complaint at, e.g., ¶¶ 18, 26-27.) That is not a California activity, that is a Texas activity. Defendant's managers and supervisors who allegedly discriminated against and/or failed to accommodate Plaintiff did not work in California or make their decisions there. The relevant core of Plaintiff's legal claims is that Defendant failed to accommodate her disability in Texas, not that it was required to afford her remote work, and therefore Plaintiff's desired accommodation of remote work from her California residence does not create a relationship between her claims and Defendant's (minimal, attenuated, and fortuitous) demonstrated contacts with California.

Conclusion. Defendant's motion is granted. Plaintiff's request for a continuance to conduct discovery on the jurisdiction issue is denied. Plaintiff's opposition brief argues only that discovery would serve to uncover immaterial further evidence of her residence in California and Defendant's knowledge of such.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5EazI6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002